3513

Executive Order

WHEREAS, Under the provisions of Section 17 of the Act approved June 5, 1920, entitled "An Act to provide for the promotion and maintenance of the American merchant marine, etc.," the Shipping Board "is authorized and directed to take over on January 1, 1921, the possession and control of, and to maintain and develop, all docks, piers, warehouses, wharves and terminal equipment and facilities, including all leasehold easements, rights of way, riparian rights and other rights, estates and interests therein or appurtenant thereto, acquired by the President by or under the Act entitled 'An Act making appropriations to supply urgent deficiencies in appropriations for the fiscal year ending June 30, 1918, etc.' "; and

WHEREAS, By a further provision of said Section 17, "the President may at any time he deems it necessary, by order setting out the need therefor and fixing the period of such need, permit or transfer the possession and control of any part of the property taken over by or transferred to the Shipping Board under this section to the War Department or the Navy Department for their needs"; and

WHEREAS, The piers known as the Hoboken piers, formerly the property of the North German Lloyd and Hamburg American Steamship Companies were acquired by the President under the Act referred to in paragraph 1 of Section 17 of the Act of June 5, 1920, hereinbefore recited, and are therefore subject to the provisions of said Section 17; and

WHEREAS, By Executive Order No. 3350 it was determined that the War Department retain of such property, Piers 1, 4, 5 and 6, together with the north half of the slip lying between Piers 1 and 2, south half of slip lying between Piers 3 and 4, and all of slips lying between Piers 4, 5 and 6; also bulkhead opposite Pier 1, bulkhead opposite slip between Piers 1 and 2, south half of bulkhead opposite slip between Piers 2 and 3, and bulkheads opposite Piers 3, 4, 5 and 6, and the slips lying between the last mentioned piers; also the second floor of bulkhead opposite Pier 1, bulkhead opposite slip between Piers 1 and 2, south half of bulkhead between Piers 2 and 3 and bulkheads opposite Piers 3, 4 and 5, and the slips lying between the last named piers; also the offices on third floor of bulkhead Piers 1 to 3, inclusive, and the yard space opposite Piers 1 to 6, inclusive, together with all buildings located thereon; and

WHEREAS, By Executive Order No. 3549 dated September 19, 1921, it was determined that it was unnecessary for the War Department to retain Piers 5 and 6 and it was directed that possession and control of same revert to the United States Shipping Board; and

WHEREAS, The possession and control by the War Department of the remaining portions of the property described in Executive Order No. 3350 are no longer necessary; now

THEREFORE, I do hereby determine that the possession and control, by the War Department, of the property retained by Executive Order No. 3350 and not heretofore transferred to the United States Shipping Board, is unnecessary and direct that such property revert to the United States Shipping Board in its present condition; subject, however, to the use by the Panama Railroad Steamship Line of berthing space at Pier 1 for not exceeding two vessels at any one time for its regular service to Panama, the Panama Railroad Steamship Line to pay the usual commercial rates for such berthing; provided, however, that the transfer of Pier 4 and the bulkhead opposite Pier 4 shall be effected on or about November 15th, 1921.

WARREN G HARDING

THE WHITE HOUSE,
November 2, 1921.

[No. 3573.]